

26NWCV01981 26NWCV01981

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-09-28

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Case Number: 26NWCV01981 Hearing Date: September 28, 2026 Dept: D

CHRISTOPHER GOMEZ V. NORDSTROM
INC., ET AL.

CASE NO.: 26NWCV01981

HEARING: 09/28/2026 @ 9:30 a.m.

#14

TENTATIVE ORDER

Defendant Nordstrom Inc.'s
demurrer to the third cause of action for Intentional Infliction of Emotional
Distress is SUSTAINED WITH 30 DAYS LEAVE TO AMEND.

Defendant Nordstrom Inc.'s
motion to strike is GRANTED WITH 30 DAYS LEAVE TO AMEND.

Plaintiff Christopher Gomez
shall file and serve an amended complaint within 30 days of this ruling.

Moving party to give notice.

Defendant Nordstrom Inc.
(Defendant) demurs to the third cause of action for Intentional Infliction of
Emotional Distress in the Complaint filed by Plaintiff Christopher Gomez
(Plaintiff).

Defendant also moves to strike
punitive damages allegations.

Background

This action arises from an
alleged assault and battery that occurred at or near 300 Los Cerritos Center,
Cerritos, CA 90703 (the "Subject Premises").

On June 8, 2026, Plaintiff filed a Complaint against defendants
Nordstrom Inc. ("Defendant"), Macerich Cerritos, LLC ("MCL"), John Doe ("Doe"),
and DOES 1 to 100, inclusive, alleging the following causes of action: (1)
Assault; (2) Battery; (3) Intentional Infliction of Emotional Distress; (4)
Negligence; and (5) Negligent Hiring, Supervision and Retention.

On September 4, 2026, at the
request of Plaintiff, the Court dismissed defendant MCL without prejudice.

Legal Standard

As a general matter, in a
demurrer proceeding, the defects must be apparent on the face of the pleading
or via proper judicial notice. *¿* (Donabedian v. Mercury Ins. Co. (2004)
116 Cal.App.4th 968, 994.) "A demurrer
tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs.
(2007) 153 Cal.App.4th 1308, 1315.) As
such, the court assumes the truth of the complaint's properly pleaded or
implied factual allegations. (Id.)
The only issue a demurrer is concerned with is whether the complaint, as
it stands, states a cause of action. (Hahn
v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained,
leave to amend must be allowed where there is a reasonable possibility of
successful amendment. (Goodman v.
Kennedy (1976) 18 Cal.3d 335, 348.)
The burden is on the plaintiff to show the court that a pleading can be
amended successfully. (Id.; Lewis v.
YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable
possibility that the plaintiff can state a good cause of action, it is error to
sustain a demurrer without leave to amend."

(Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Plaintiff is only required to allege ultimate facts, not evidentiary facts.

(See Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212 ["the complaint should set forth the ultimate facts constituting the cause of action, not the evidence by which plaintiff proposes to prove those facts"]; 1 Cal. Affirmative Def. § 10:2 (2d ed.) [allegations of agency, course and scope of employment, etc. qualify as ultimate facts].) Plaintiff's allegations must be accepted as true on demurrer. (See Yvanova v. New Century Mortgage Corp. (2016) 62 Cal.4th 919, 924 ["For purposes of reviewing a demurrer, we accept the truth of material facts properly pleaded in the operative complaint"].)

Meet and Confer

Code of Civil Procedure section 430.41, subdivision (a) requires the moving party to meet and confer "in person, by video conference, or by telephone" in an attempt to resolve a demurrer's deficiencies five days before the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).) Before filing a motion to strike, a similar meet and confer process must be effectuated. (Code Civ. Proc., § 435.5, subd. (a).)

The Court finds that Defendant has not fulfilled the meet and confer requirement. (Farley Decls., ¶ 3, Ex. 1.) Meeting and conferring via email is not sufficient.

The Court will consider the merits of both the demurrer and the motion to strike. Defendant is reminded to comply with the requirements of the Code of Civil Procedure.

Demurrer

Third

Cause of Action – IIED

Defendant demurs to third cause of action for IIED on the grounds that Plaintiff: (1) has not met the

“outrageous conduct” requirement for such claim; and (2) has not met the “severe emotional distress” element of such claim. Plaintiff contends that the third cause of action is sufficiently pleaded.

“A cause of action for IIED

requires proof of: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress.” (Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 995, 1007.) Conduct, to be “outrageous” must be “so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Ibid.

[internal quotations omitted]) Similarly,

“[s]evere emotional distress means emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.” (Hughes

v. Pair (2009) 46 Cal.4th 1035, 1051 [internal quotations omitted].) ٤٠

‘[M]ere insults, indignities, threats, annoyances, petty oppressions, or other trivialities’ ” do not constitute extreme and outrageous conduct.” (Okorie v. Los Angeles Unified School Dist. (2017) 14 Cal.App.5th 574, 597 [disapproved of by Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995 on other grounds].)

Plaintiff alleges, inter alia,

that on July 22, 2024, Plaintiff was browsing the fragrance section at a Nordstrom store. (Compl. ¶ 8.) While examining a bottle of perfume, Plaintiff was approached by defendant Doe, a security guard employed at the Subject Premises. (Id. ¶ 8.) Defendant

Doe demanded that Plaintiff surrender the perfume, to which Plaintiff complied. (Id.) Plaintiff did so “immediately . . . without hesitation, resistance, or argument.” (Id.) Plaintiff alleges that defendant Doe suddenly and violently shoved Plaintiff against a glass wall with substantial force. (Id.) Plaintiff alleges that the glass wall was neither secure nor properly maintained.

(Id.) Plaintiff suffered physical injuries and damages. (Id. ¶ 9.)

The Court finds that the third

cause of action for IIED is insufficiently alleged. (Compl. ¶¶ 34-43.) The mere act of physical contact, without

more, does not give rise to extreme and outrageous conduct. Additionally, Plaintiff has not pleaded facts showing that Plaintiff suffered "emotional distress of such substantial or enduring quality" (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) The allegation that Plaintiff has suffered "severe and extreme emotional distress including . . . highly unpleasant mental suffering and anguish" is insufficient to meet the pleading standard. Plaintiff has not set forth the nature of the emotional distress sustained. (See Bogard v. Employers Casualty Co. (1985) 164 Cal.App.3d 602, 617.)

Accordingly, the Court SUSTAINS the Demurrer to Third Cause of Action for IIED with 30 DAYS LEAVE TO AMEND.

Motion to Strike

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).) California Civil Code Section 3294 authorizes punitive damages upon a showing of malice, fraud, or oppression. Malice is defined as either "conduct which is intended by the defendant to cause injury to the plaintiff," or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).)

"Despicable conduct is conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal. App. 4th 306, 331.) California Civil Code Section 3294(c)(2) defines oppression as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." Fraud under California Civil Code Section 3294(c)(3) "means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." Specific facts must be pled in support of punitive damages. (Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-392.)

"An employer shall not be liable for [punitive] damages ..., based upon

acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct.... With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, [or] ratification ... must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).) The Supreme Court of California interpreted the latter statement as requiring the officer, director, or managing agent to be someone who "exercise[s] substantial discretionary authority over decisions that ultimately determine corporate policy." (White v. Ultramar, Inc. (1999) 21 Cal.4th 563, 577.)

The Court finds that the punitive damages allegations are insufficient. Defendant is a corporation. (Compl. ¶ 2.) Plaintiff has not pleaded specific facts showing any ratification or advanced knowledge of the unfitness of defendant Doe as to Defendant. Moreover, Plaintiff has not alleged that the conduct at issue was perpetuated by an officer, director, or managing agent of Defendant. Plaintiff has not sufficiently alleged oppression, malice, or fraud of Defendant.

Thus, the Court finds it appropriate to strike the punitive damages allegations. The motion to strike is GRANTED WITH 30 DAYS LEAVE TO AMEND.

Conclusion

Defendant Nordstrom Inc.'s Demurrer to the Third Cause of Action for IIED is SUSTAINED with 30 days leave to amend.

Defendant Nordstrom Inc.'s Motion to Strike is GRANTED with 30 days leave to amend.

Plaintiff Christopher Gomez shall file and serve an amended complaint within 30 days of this ruling.